

District-Chandpur.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 3871 of 2010.

Mohammad Ali Molla,
..... Purchaser/Defendant-Respondent-Petitioner.

-Versus-

Md. Delwar Hossain Molla and others.
..... Plaintiffs-Appellants-Opposite Parties.

Mr. Pankaj Kumar Kundu, Senior Advocate, with
Ms. Mukti Rani Kundu, Advocate
.....For the Purchaser/Defendant-Respondent-Petitioner.

Dr. Naim Ahmed, Senior Advocate, with
Mr. Shahin Alam, Advocate
..... For the Plaintiffs-Appellants-Opposite Parties.

Heard On: 14.07.2025.

And

Judgment Delivered On: 20.07.2025.

Md. Toufiq Inam, J.

This Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and decree (dated 29.07.2010 and 05.08.2010 respectively) passed by the learned Joint District Judge, 2nd Court, Chadpur in Title Appeal No. 61 of 2005, allowing the appeal and thereby reversing the judgment and decree (dated 06.06.2005 and 09.06.2005 respectively) passed by the learned Senior Assistant Judge, Chandpur Sadar, Chandpur in Title Suit No. 112 of 2003, dismissing the suit, should not be set aside.

The plaintiffs, being five full brothers, instituted the suit seeking pre-emption of the suit land under Mohammadan Law on the ground that

they were co-sharers in the holding which had been partially sold to the defendant-petitioner.

That the plaintiffs' case, in brief, is that:

- a) The suit land recorded in C.S. Khatian No. 417 originally belonged to Fazar Ali, Abbas Ali, Amzad Ali, Isab Ali, Chan Gazi, and Rafia Bhanu, who also held land in C.S. Khatian Nos. 499 and 207. Upon the death of Fazar Ali, his only son Ayub Ali inherited his share. Ayub Ali also acquired additional lands by purchase. Moreover, Ayub Ali's wife, Hafeza Khatun, received certain portions of land as a gift from her father-in-law, Fazar Ali.
- b) Subsequently, on 27.08.1950, Ayub Ali sold 27 decimals of land from Dag No. 452 of Khatian No. 207 to one Sangsar Ali Gazi, who in turn sold the same to three persons, including Plaintiff No. 1, on 20.02.1958, and handed over possession accordingly. The plaintiffs' predecessors also purchased several portions of land, including 49 acres within the suit khatian. Upon the death of their father, the plaintiffs inherited the said land.
- c) The plaintiffs' residential house stands on the land described in Schedule No. 1 of the suit, and Plaintiff No. 3 has tin-shed houses on the land described in Schedule No. 2. Defendant No. 2, their cousin, never possessed this land. As Defendant No. 2 was residing on the plaintiffs' ancestral ejmali land at Hajigonj, the plaintiffs had been occupying the land of Defendant No. 2 situated at Chandpur as reciprocal enjoyment.

- d) On 01.09.2003, Defendant No. 1 asked Plaintiff No. 3 to vacate the house and attempted to cut down trees on the suit land. Upon inquiry, Defendant No. 1 disclosed that he had purchased the land for Tk. 1,60,000. Immediately upon learning of this transaction, the plaintiffs, in presence of witnesses, expressed their desire to exercise the right of pre-emption and offered to pay the said amount. As Defendant No. 1 refused, the plaintiffs instituted the instant suit.

Defendant No. 1 contested the suit by filing a written statement denying the plaintiffs' averments. He stated that Khalilur Rahman (father of the plaintiffs), Syeder Rahman (father of Defendant No. 1-Purchaser), and A. Jalil Molla (father of Defendant No. 2-Seller) were full brothers who jointly purchased the suit land. After their demise, the respective heirs, including the parties, inherited the property and had been in amicable possession.

Syeder Rahman, by a will (osiot nama), bequeathed his share to his heirs, whereafter Defendant No. 1 took possession. During the last land survey, the land was recorded in the names of all co-sharers equally. Defendant No. 1 also stated that the plaintiffs were in possession of land belonging to their maternal uncle, Nur Mohammad, who was a co-purchaser with their predecessors. Defendant No. 1 was in possession of the share of A. Jalil Molla (predecessor of Defendant No. 2-Seller). He further claimed that Defendant No. 2 sold the suit land to him on 10.08.2003 with full knowledge of the plaintiffs, and he remained in possession thereafter. He denied that the plaintiffs ever made any demand or offered the price. According to him, the suit was filed out of spite and should be dismissed.

During trial, the learned Senior Assistant Judge, Chandpur Sadar, Chandpur, framed the following issues:

- i) Whether the suit is maintainable in its present form and manner;
- ii) Whether the plaintiffs complied with the requirement of Talab-e-Muwathibat;
- iii) Whether the plaintiffs complied with the requirement of Talab-e-Ishhad;
- iv) Whether the plaintiffs are entitled to the relief of pre-emption as prayed for.

In support of their case, the plaintiffs examined three witnesses. PW-1, Emran Hossain Molla, is Plaintiff No. 3; PW-2, Abul Kalam Molla; and PW-3, Saizuddin, are neighbours. Plaintiffs' documents were marked as Exhibits 1 to 1(Ka) and 2 to 2.3. While the contesting Defendant No. 1 examined two witnesses: DW-1, Mohammad Ali Molla (Defendant No. 1 himself), and DW-2, Mizan, a neighbour. Documents adduced by the defendant were marked as Exhibits Ka, Kha, and Ga.

Upon conclusion of the trial and consideration of the materials on record, the Senior Assistant Judge, Chandpur Sadar, Chandpur, by judgment and decree dated 06.06.2005, dismissed the suit. Being aggrieved by the said judgment and decree, the plaintiffs preferred Title Appeal No 61 of 2005 before the learned District Judge, Chandpur, who transferred the appeal to the Court of the Joint District Judge, 2nd Court, Chandpur, for hearing and disposal. The learned Joint District Judge, 2nd Court, Chandpur, by his judgment and decree dated 29.07.2010, allowed the appeal and set aside the judgment and decree of the trial court. Against which the Purchaser Defendant No.1 as petitioner obtained this Rule under section 115(1) CPC.

Mr. Pankaj Kumar Kundu, learned Senior Advocate appearing with Ms. Mukti Rani Kundu, learned Advocate for the petitioner, submits that the impugned appellate judgment is legally untenable and liable to be set aside for having misconstrued the settled principles of Mohammadan Law relating to the right of pre-emption. He contends that the suit, though jointly filed by five plaintiffs, suffers from fatal legal defects as only one of them, Plaintiff No. 3 (PW-1), complied with the two essential demands: Talab-e-Muwathibat and Talab-e-Ishhad. The remaining plaintiffs neither performed the required demands nor produced any evidence to suggest that they had done so.

Mr. Kundu draws the Court's attention to Paragraph 231 of Mulla's Principles of Mahomedan Law, which unequivocally states that performance of both talabs is a condition precedent to establishing the right of pre-emption. The law does not permit waiver, substitution, or collective compliance in lieu of individual fulfillment of these demands. He submits that under Paragraph 241 of Mulla, the right of pre-emption being personal in nature, each plaintiff must independently fulfill the conditions prescribed. The performance of talabs by one pre-emptor cannot inure to the benefit of others. He emphasizes that failure to perform talabs by each claimant vitiates the joint claim.

Mr. Kundu further refers to Explanation IV of Paragraph 236 of Mulla, which specifically clarifies that in suits filed by multiple co-sharers: "Each one of them must have independently complied with the talabs; one cannot act on behalf of the others." In the present case, there is not a scrap of evidence that Plaintiffs No. 1, 2, 4, or 5 performed the talabs individually, nor is there any legal basis to presume constructive compliance through Plaintiff No. 3.

In particular, Mr. Kundu submits that the inclusion of Plaintiff No. 5 was procedurally fraudulent. PW-1, in his cross-examination, admitted that Plaintiff No. 5 was abroad at the time of institution of the suit. No power of attorney, affidavit, or embassy-attested authorization has been placed on record to demonstrate his consent or participation. His name appears in the plaint without lawful verification or attestation, and he neither deposed nor confirmed his claim through any legally accepted manner. Such conduct, it is argued, amounts to a fraud on the process of the Court, rendering the plaint defective and the claim of Plaintiff No. 5 wholly untenable. He submits that this is not a case of mere irregularity but a fraud upon the court, which strikes at the root of the plaintiffs' collective claim. The learned appellate court failed to consider this vital aspect of the case and erred in law by granting relief to plaintiffs who had not satisfied the foundational requirements of Mohammadan Law. The decree in favor of all five plaintiffs is thus perverse and unsustainable. With regard to fraud, he refers to the case of *S.P. Chengalvaraya Naidu vs. Jagannath* (1994) 1 SCC 1; *Lazarus Estates Ltd. Vs. Beasley* (1956) 1 QB 702. In view of the above, Mr. Kundu prays that the Rule be made absolute, setting aside the appellate judgment and decree.

On the contrary, Dr. Naim Ahmed, learned Senior Advocate, appearing with Mr. Shahin Alam, Advocate, submits on behalf of the plaintiffs-opposite parties that the plaintiffs are full brothers and undisputed co-sharers in the holding. He contends that Plaintiff No. 3 (PW-1), having duly performed both Talab-e-Muwathibat and Talab-e-Ishhad as required under Mohammadan Law, initiated the suit promptly and in good faith. According to him, where co-sharers jointly institute a suit for pre-emption, the action of one in performing the talabs may in effect serve to preserve the collective right of all, particularly where the co-sharers form a single-family unit and act in unison.

In support of this proposition, Dr. Ahmed places reliance on Paragraph 236 of Mulla, urging that joint action by co-sharers should be read liberally in equity, especially where no malice, delay, or waiver is alleged. He further argues that the spirit of pre-emption law is to prevent the intrusion of strangers into a joint holding and that where such risk is neutralized through a prompt claim by any co-sharer, strict technicalities should not defeat the substance of justice.

Next, Dr. Ahmed submits that while there is no written power of attorney or express authorization on record showing that Plaintiff No. 3 was formally authorized by the remaining plaintiffs to perform the requisite talabs, such authority may be inferred from conduct. He argues that the plaintiffs are full brothers, joint owners of the undivided homestead, and have jointly pursued pre-emption from the outset. They collectively filed the plaint, and none of the other plaintiffs have objected or dissociated themselves from the claim. On these grounds, he ultimately prays that the Rule be discharged.

Having heard the learned advocates for both sides and upon perusal of the judgments of the courts below, as well as the evidence on record, this Court proceeds to render its decision.

The trial court dismissed the suit, holding that only Plaintiff No. 3 (PW-1) had performed the essential demands, talab-e- muwathibat and talab-e-ishhad, required under Mohammadan Law. The other plaintiffs neither performed these demands nor adduced evidence of having done so. The appellate court, however, reversed the judgment and decreed the suit in favor of all five plaintiffs, reasoning that since they were co-sharers and jointly instituted the suit, performance of the demands by one of them was sufficient to sustain the claim.

The purchaser-petitioner challenges the legality of that reversal, contending inter alia that:

- A) Only Plaintiff No. 3 (PW1) complied with the required formalities;
- B) The right of pre-emption under Mohammadan Law is strictly a personal right, not exercisable through others;
- C) Plaintiff No. 5 was abroad at the relevant time, and no valid attestation, power of attorney, or authorized representation was produced to support his participation.

The cross-examination of PW1 confirms that Plaintiff No. 5 was overseas when the plaint was signed, and that his signature was obtained during his absence. No notarization, embassy attestation, or legal authorization has been produced. There is also no deposition from Plaintiff No. 5 nor verification by any legally authorized representative. It is well-settled that a plaint must be signed and verified by the plaintiff himself or through a duly authorized person. In absence of embassy attestation, power of attorney, or sworn affidavit, the authenticity of Plaintiff No. 5's participation is legally questionable and procedurally defective.

According to Paragraph 231 of Mulla's Principles of Mahomedan Law, two demands are essential to establish the right of pre-emption. The first is called talab-e-muwathibat, i.e., the immediate demand; and the second is called talab-e-ishhad, i.e., the demand made in the presence of witnesses. Both must be strictly performed by each person asserting the right. Testimonies of PWs establish that only plaintiff No. 3, who deposed as PW1, alone made demands upon thumping his chest.

Dr. Ahmed contends that collective action of plaintiff No.3 reflects implicit consensus and constructive authorization. According to him,

in family matters, especially among co-sharers, courts should adopt a liberal approach to evidentiary requirements when intent and purpose are clearly aligned. The fact that Plaintiff No. 3, as the most active and available member, performed the talabs, should suffice to bind the others, particularly where no malafide, delay, or contradiction has been alleged. He thus urges the Court to recognize authorization by implication and conduct, rather than insist on formal documentation, in the interest of substantive justice and the familial nature of joint rights.

With due respect to this submission of Dr. Ahmed, this Court finds itself unable to accept the proposition that authorization by conduct can substitute or cure the legal requirement that each pre-emptor must personally and independently perform the talabs as mandated under Mohammadan Law. The right of pre-emption under Islamic law is not a collective family right, but an individual and personal right, which arises only upon strict fulfillment of prescribed conditions, as explained under:

1. Paragraph 231 of Mulla: which makes it abundantly clear that both *talab-e-muwathibat* and *talab-e-ishhad* must be performed by the pre-emptor individually.
2. Explanation IV to Paragraph 236: which squarely rejects the argument of derivative compliance, stating: “Where several co-sharers sue for pre-emption, each of them must have independently complied with the talabs; one cannot act on behalf of the others.”
3. Paragraph 241 of Mulla: which affirms that the performance of talabs by one plaintiff does not enure to

the benefit of the others who have not complied with the required formalities.

This court is of the view that these provisions are not procedural but substantive conditions precedent. The courts have consistently held that no equity, presumed intention, or family unity can override these mandatory prerequisites. Talabs are personal obligations, not curable by representation or inference.

Further, the claim that there was authorization "by conduct" is not supported by any reliable evidence on record. There is no contemporaneous action, such as a joint notice, joint meeting, or affidavit, that demonstrates any of the other plaintiffs were aware of, let alone consented to, Plaintiff No. 3's performance of talabs on their behalf. Mere non-objection at the time of suit is insufficient, especially when none of them performed talabs themselves or took steps to validate the same. The principle of authorization by conduct may apply in matters of contract or agency under general civil law, but not where a personal religious obligation under Mohammadan Law is involved. In such cases, strict compliance is required, and constructive performance is legally impermissible. Therefore, the Court holds that the plea of "authorization by conduct" cannot be sustained. The law demands personal compliance, not inferred or delegated action, and any deviation would amount to judicial dilution of established principles of Islamic pre-emption.

The appellate court's reliance on joint institution of the suit as a substitute for individual performance is further negated by Explanation IV of Paragraph 236 of Mulla, which states: *"Where several co-sharers sue for pre-emption, each of them must have independently complied with the talabs; one cannot act on behalf of*

the others." Thus, the appellate court's approach contravenes both the textual principles and judicial interpretation of Mohammadan Law.

The allegations surrounding Plaintiff No. 5's participation, absence of evidence, improper verification, and lack of legal attestation, further strengthen the petitioner's contention that his inclusion was irregular, if not fraudulent. While fraud must be pleaded and strictly proved, the absence of formal legal compliance raises legitimate doubts about the authenticity of his joinder. However, the right of Plaintiff No. 3 (PW-1) remains unaffected. He independently performed both talabs, and his claim has been legally established.

Given that both Plaintiff No. 3 and the Purchaser-Defendant are co-sharers, and the land in question is indivisible in nature, equity and justice demand that the property be equally apportioned between them. Plaintiff No. 3 is therefore entitled to pre-empt half of the suit land.

In view of the above discussion, **the Rule is made absolute in part.** The impugned appellate **judgment and decree dated 29.07.2010** and 05.08. 2010 respectively passed the learned Joint District Judge, 2nd Court in Title Appeal No. 61 of 2005, **is modified to the extent that only Plaintiff No. 3 (Md. Emran Molla) shall be entitled to pre-empt the suit land to the extent of 50%, and the remaining 50% shall remain with the defendant-purchaser-petitioner. The rest of the plaintiffs' claim is hereby dismissed.**

Let the lower court records be sent down together with a copy of this judgment at once. There shall be no order as to costs.

(Justice Md. Toufiq Inam)